

than ten years, become qualified for receiving a superannuation allowance at the age of fifty-five years instead of at the age of sixty years.

3 & 4 Geo. 5.
c. 28.
3 & 4 Geo. 5.
c. 38.

(2) In this section the expression "certified institutions for defectives" means certified institutions provided by local authorities under the Mental Deficiency Act, 1913, or by district boards under the Mental Deficiency and Lunacy (Scotland) Act, 1913.

(3) In the application of this section to Scotland, the Secretary for Scotland shall be substituted for the Secretary of State.

Short title
and repeal.

2.—(1) This Act may be cited as the Asylums and Certified Institutions (Officers Pensions) Act, 1918.

(2) Section forty-five of the Mental Deficiency Act, 1913, and section thirty-six of the Mental Deficiency and Lunacy (Scotland) Act, 1913, shall be deemed never to have had effect and are hereby repealed.

CHAPTER 34.

An Act to enable the statutory provisions affecting the charges which may be made in respect of certain undertakings to be temporarily modified.

[8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Modifications
of statutory
provisions
affecting
charges.

1.—(1) Where it appears to the appropriate Government Department that the financial position of any undertaking to which this Act applies has been adversely affected by circumstances arising out of the present war, the Department may, if they think fit, by order provide for the modification of any statutory provisions regulating the charges to be made by the undertakers, and of any statutory provisions consequential on or supplemental to any such provisions as aforesaid, for such period during the continuance of this Act, in such manner, and subject to such conditions, as appear to the Department to be just and reasonable :

Provided that—

(a) where the undertakers are a local authority no modification shall be authorised which will increase the statutory maximum charge by more than fifty per cent., or which is more than sufficient so far as can be estimated to enable the undertaking to be carried on without loss ; and

- (b) in any other case no modification shall be authorised which is more than sufficient to enable with due care and management a dividend on the ordinary stock or shares of the undertaking to be paid at three-quarters of the standard or maximum rate of dividend, if any, prescribed for the undertaking, or at three-quarters of the pre-war rate of dividend, whichever is lower.

(2) An application to a Department for the purposes of this Act shall be accompanied by such information, certified in such manner, as the Department may require with respect to the financial position of the undertaking in question; and before making an order the appropriate Government Department shall require the undertakers to give public notice of the application for an order under this Act, and as to the manner in which, and time within which, representations may be made; and to give a similar notice in writing to the council of each county, borough, or urban or rural district, within which any part of the undertaking, or limits of supply of the undertaking, is situate; and the Department shall consider any representations which may be duly made.

(3) The undertakings to which this Act applies are tramway undertakings, including light railways constructed wholly or mainly on public roads, and undertakings for the supply of gas, water, hydraulic power, and electricity, and in calculating the maximum charge which may be authorised under this Act in respect of such tramway undertakings fractions of a halfpenny shall be counted as a halfpenny.

- (4) For the purposes of this Act—

The expression “statutory provisions” includes the provisions of any order having the force of an Act;

The expression “appropriate Government Department” means, in relation to gas and water undertakings carried on by local authorities, the Local Government Board, and in relation to other undertakings the Board of Trade;

The expression “local authority” includes any commissioners, trustees, or other public body of persons carrying on, otherwise than for purposes of private profit, any undertaking to which this Act applies;

The expression “pre-war rate of dividend” means the average rate of dividend for the three financial years immediately preceding the war.

2. In the application of this Act to Scotland the Secretary for Scotland, and in the application of this Act to Ireland the Local Government Board for Ireland, shall be substituted for the Local Government Board.

Application
to Scotland
and Ireland.

Short title
and duration.

3.—(1) This Act may be cited as the Statutory Undertakings (Temporary Increase of Charges) Act, 1918.

(2) This Act shall have effect during the continuance of the present war and for a period of two years thereafter, and no longer.

CHAPTER 35.

An Act to extend the borrowing powers of District Councils under the Public Health (Ireland) Acts, 1878 to 1917. [8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Extension of
borrowing
powers of
district
councils.

1.—(1) The powers of a district council to borrow under the Public Health (Ireland) Acts, 1878 to 1917, shall be extended so as to include a power to borrow from any bank such sums as the Local Government Board may certify to be necessary for the purpose of providing working capital for any gas, water, electricity, or other public undertaking carried on by the council.

(2) The powers given by this section shall be in addition to and not in derogation of any other powers conferred on a district council by any local Act or otherwise.

(3) The powers given by this section shall not be exercised during the continuance of the present war and twelve months thereafter, unless the consent of the Treasury has been previously obtained.

Short title,
citation and
construction.

2. This Act may be cited as the Public Health (Borrowing Powers) (Ireland) Act, 1918, and shall be construed as one with the Public Health (Ireland) Acts, 1878 to 1917, and may be cited with those Acts as the Public Health (Ireland) Acts, 1878 to 1918.

CHAPTER 36.

An Act to amend subsection (3) of section eleven of the Corn Production Act, 1917. [8th August 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: